

BEFORE THE FEDERAL MARITIME COMMISSION

CHINA UNITED LINES, LTD,
Complainant

v.

AMAZON.COM SERVICES LLC, AMAZON
LOGISTICS INC., and BEIJING CENTURY JOYO
COURIER SERVICE CO., LTD.,
Respondents.

DOCKET NO. 25-04

**VERIFIED ANSWER OF RESPONDENT AMAZON.COM SERVICES LLC, AMAZON
LOGISTICS INC., AND BEIJING CENTURY JOYO COURIER SERVICE CO., LTD.**

Respondents Amazon.com Services LLC (“Amazon Services”), Amazon Logistics, Inc. (“ALI”), and Beijing Century Joyo Courier Service Co., Ltd. (“BCJ”) (collectively “Amazon”), by and through undersigned counsel, answer the Verified Amended Complaint by China United Lines (“China United”) as follows:

ANSWER

1. The allegations in Paragraph 1 concern the Complainant and include legal assertions and do not require a response by Amazon. To the extent a response by Amazon is required, Amazon denies the allegations for lack of knowledge or information sufficient to form a belief as to the truth of the matter(s) asserted.
2. The allegations in Paragraph 2 concern the Complainant and include legal assertions and do not require a response by Amazon. To the extent a response by Amazon is required,

Amazon denies the allegations for lack of knowledge or information sufficient to form a belief as to the truth of the matter(s) asserted.

3. Amazon Services admits the allegations in Paragraph 3.
4. Amazon Logistics admits the allegations in Paragraph 4.
5. Beijing Century admits the allegations in Paragraph 5.
6. The allegations of Paragraph 6 constitute legal assertions to which no response is required.
To the extent any of the allegations in this paragraph require a response, they are denied in their entirety.
7. The allegations of Paragraph 7 constitute legal assertions to which no response is required.
To the extent any of the allegations in this paragraph require a response, they are denied in their entirety.
8. The allegations of Paragraph 8 constitute legal assertions to which no response is required.
To the extent any of the allegations in this paragraph require a response, they are denied in their entirety.
9. The first sentence of Paragraph 9 constitutes a legal assertion to which no response is required. To the extent any of the allegations in this sentence require a response, they are denied in their entirety. Amazon denies the allegations in the second sentence of Paragraph 9 and denies that Complainant is entitled to any relief in this proceeding.
10. The allegations of Paragraph 10 constitute legal assertions to which no response is required.
To the extent any of the allegations in this paragraph require a response, they are denied in their entirety, and Amazon denies that Complainant is entitled to any relief in this proceeding.

11. The allegations in Paragraph 11 concern Complainant and do not require a response by Amazon. To the extent a response by Amazon is required, Amazon denies the allegations for lack of knowledge or information sufficient to form a belief as to the truth of the matter(s) asserted.
12. The allegations in Paragraph 12 concern Complainant and do not require a response by Amazon. To the extent a response by Amazon is required, Amazon denies the allegations for lack of knowledge or information sufficient to form a belief as to the truth of the matter(s) asserted.
13. In response to Paragraph 13, Amazon states that the Main Transportation Agreement (“MTA”), Work Order, and Nondisclosure Agreement (“NDA”) (collectively the MTA and Work Order, as amended, the “Service Contract”) speak for themselves and denies any allegations inconsistent therewith.
14. The allegations of Paragraph 14 constitute legal assertions to which no response is required. To the extent a response is required, Amazon states that the Service Contract speaks for itself and denies any allegations inconsistent therewith.
15. In response to Paragraph 15, Amazon states that the Service Contract speaks for itself and denies any allegations inconsistent therewith.
16. In response to Paragraph 16, Amazon states that the Service Contract speaks for itself and denies any allegations inconsistent therewith.
17. In response to the first sentence in Paragraph 17, Amazon admits Amazon functioned as a shipper in U.S. foreign commerce by ocean. The remainder of the sentence constitutes a legal assertion to which no answer is required. In response to the last two sentences in

Paragraph 17, Amazon states that the Service Contract speaks for itself and denies any allegations inconsistent therewith.

18. Amazon denies the allegations in Paragraph 18.

19. In response to Paragraph 19, Amazon states that the Service Contract speaks for itself and denies any allegations inconsistent therewith.

20. In response to Paragraph 20, Amazon states that the MTA, Work Order, and NDA speak for themselves and denies any allegations inconsistent therewith.

21. In response to Paragraph 21, Amazon states that the Service Contract speaks for itself and denies any allegations inconsistent therewith.

22. In response to Paragraph 22, Amazon states that the Service Contract speaks for itself and denies any allegations inconsistent therewith.

23. In response to Paragraph 23, Amazon states that the Service Contract and Work Order speak for themselves and denies any allegations inconsistent therewith.

24. In response to Paragraph 24, Amazon admits that following the execution of the Service Contract, Amazon booked shipments with China United in accordance with the Service Contract terms. In response to the remainder of the allegations, Amazon states that the Service Contract speaks for itself and denies any allegations inconsistent therewith.

25. In response to Paragraph 25, Amazon admits that on April 1, 2023, Amazon Services sent China United notice that it was electing to terminate the agreement for convenience effective May 30, 2023. The April 1, 2023, notice speaks for itself, and Amazon denies any allegations inconsistent therewith.

26. The allegations of Paragraph 26 constitute legal assertions to which no response is required.

To the extent any of the allegations in this paragraph require a response, Amazon states that the Service Contract speaks for itself and denies any allegations inconsistent therewith.

27. In response to Paragraph 27, Amazon admits that on or about April 26, 2023, the parties discussed conclusion and termination of the Service Contract, and that following the discussions, Amazon Services sent persons at China United a spreadsheet. The spreadsheet speaks for itself, and Amazon denies any allegations inconsistent therewith.

28. In response to Paragraph 28, Amazon states that Amazon Services received an email from persons at China United on or about May 10, 2023, and that the email speaks for itself, and Amazon denies any allegations inconsistent therewith.

29. In response to Paragraph 29, Amazon admits that Amazon Services sent an email to persons at China United on or about May 18, 2023, and states that the email speaks for itself, and that Amazon denies any allegations inconsistent therewith.

30. In response to Paragraph 30, Amazon admits that Amazon Services sent a superseding notice of termination for cause to China United on or about June 7, 2023. Amazon denies the remaining allegations in Paragraph 30. The June 7, 2023, notice speaks for itself, and Amazon denies any allegations inconsistent therewith.

31. In response to Paragraph 31, Amazon states that the June 7, 2023, notice speaks for itself and denies any allegations inconsistent therewith.

32. In response to Paragraph 32, Amazon states that the June 7, 2023, notice and the MTA speak for themselves and denies any allegations inconsistent therewith.

33. In response to Paragraph 33, Amazon admits the referenced July 4, 2022, post exists on WeChat. Amazon further states that the July 4, 2022, WeChat post speaks for itself and denies any allegations inconsistent therewith.
34. In response to Paragraph 34, Amazon states that the [July 4, 2022](#), and [August 9, 2022](#), WeChat posts speak for themselves and denies any allegations inconsistent therewith. Amazon is unaware of a relevant WeChat post dated December 9, 2022, but states that the [December 8, 2022, WeChat post](#) linked in this paragraph speaks for itself and denies any allegations inconsistent therewith. The remainder of the allegations in Paragraph 34 are denied.
35. The allegations of Paragraph 35 constitute legal assertions to which no response is required. To the extent any of the allegations in this paragraph require a response, Amazon denies the allegations in Paragraph 35. China United's WeChat posts directly violated the express terms of Section 7 of the MTA (Confidentiality).
36. In response to Paragraph 36, Amazon states that the July 4, 2022 and August 9, 2022, WeChat posts, and a December 8, 2022 WeChat post remain accessible thorough hyperlinks to the relevant WeChat pages and that each post speaks for itself and denies any allegations inconsistent therewith.
37. Paragraph 37 contains legal conclusions to which no answer is required. To the extent any answer is required, Amazon denies the allegations in Paragraph 37.

COUNT I

38. The allegations of Paragraph 38 constitute legal assertions to which no response is required. To the extent any of the allegations in this paragraph require a response, Amazon denies the allegations in Paragraph 38.

39. Amazon admits the allegations in Paragraph 39.
40. In response to Paragraph 40, Amazon states that the Service Contract speaks for itself and denies any allegations inconsistent therewith.
41. In response to Paragraph 41, Amazon admits that on April 1, 2023, Amazon Services provided China United notice that it was electing to terminate the agreement for convenience effective May 30, 2023. Amazon denies all other allegations in Paragraph 41.
42. The allegations of Paragraph 42 constitute legal assertions to which no response is required. To the extent any of the allegations in this paragraph require a response, Amazon denies the allegations in Paragraph 42.
43. Amazon denies the allegations in Paragraph 43 and further states that Amazon Services' termination for cause was not pretextual.
44. Amazon denies the allegations in Paragraph 44.
45. Amazon denies the allegations in Paragraph 45.
46. The allegations of Paragraph 46 constitute legal assertions to which no response is required. To the extent any of the allegations in this paragraph require a response, Amazon denies the allegations in Paragraph 46, including that Amazon Services terminated for cause in a "pretextual manner" and/or attempted to obtain ocean transportation at less than the rates or charges that would have otherwise applied, an allegation that Amazon Services believes has been made without any reasonable basis.
47. The allegations of Paragraph 47 constitute legal assertions to which no response is required. To the extent any of the allegations in this paragraph require a response, Amazon denies the allegations in Paragraph 47 and denies that Complainant is entitled to any reparations in this proceeding.

48. Amazon denies the allegations set forth in Paragraph 48. China United's claims are fundamentally contractual and fall outside the statutory jurisdiction of the Commission, as evidenced among other things by two prior actions China United has initiated against Amazon, both alleging breach of contract. The first action was a breach of contract lawsuit filed in federal court in November 2023. The second was a Request for Arbitration under the contract filed with the Shanghai International Arbitration Center in September 2024, in violation of the venue clause in the Service Contract, that also alleges breach of contract. Both actions are based on the same set of facts as the current allegations, confirming that this proceeding is inherently contractual in nature.

49-84. Counts II-V have been dismissed and no response to the allegations in these counts is necessary. To the extent any of the allegations in these claims require a response, they are denied in their entirety.

VII. CAUSATION AND INJURY TO COMPLAINANT

85. The allegations in Paragraph 85 concern the Complainant and include legal assertions, and do not require a response by Amazon. To the extent a response by Amazon is required, Amazon denies the allegations.

VIII. ALTERNATIVE DISPUTE RESOLUTION

86. The allegations in Paragraph 86 concern the Complainant and include legal assertions, and do not require a response by Amazon. To the extent a response by Amazon is required, Amazon denies the allegations except to state that settlement discussions between the parties have so far been unsuccessful.

87. The allegations in Paragraph 87 concern the Complainant and do not require a response by Amazon. To the extent a response by Amazon is required, Amazon denies the allegations

for lack of knowledge or information sufficient to form a belief as to the truth of the matter(s) asserted.

IX. REQUEST FOR ORAL HEARING

88. The allegations in Paragraph 88 concern the Complainant and include a legal demand, and do not require a response by Amazon. To the extent a response by Amazon is required, Amazon states that a hearing will not be required if Complainant is unable to provide a sufficient evidentiary basis for its claims to warrant one, and that Amazon is aware of no such basis.

DEFENSES & AFFIRMATIVE DEFENSES

1. The Commission does not have jurisdiction over this proceeding because Complainant's claims arise out of the Service Contract between Amazon Services and Complainant.
2. Complainant's allegations in support of the single claim that remains in this proceeding, that Amazon entered into the Service Contract with the fraudulent intent to breach or terminate it without paying the damages provided for in the contract for a termination for convenience, lack any evidentiary support or, if pled on information and belief, any reasonable basis for that information and belief. China United's filing and prosecution of this proceeding, which is duplicative of two other proceedings it has filed, including one filed in direct contravention of a venue clause in the Service Contract, is a bad faith abuse of the Commission's process.
3. Complainant's claims and other legal contentions are not supported by existing law nor by a nonfrivolous argument for extending, modifying, or reversing existing law nor for establishing new law, and the filing and prosecution of this Complaint warrants the imposition of sanctions.

4. Amazon's practices do not constitute "false billing, false classification, false weighing, false report of weight, false measurement, or any other unjust device or means."
5. Amazon reserves the right to amend this Verified Answer to raise any additional defenses or affirmative defenses that may arise in the course of this proceeding.

X. PRAYER FOR RELIEF

WHEREFORE, Respondent Amazon respectfully requests:

- A. An Order that Complainant is not entitled to any relief or reparations and that the proceeding be dismissed with prejudice;
- B. The Presiding Officer impose sanctions for the filing and prosecution of this complaint;
- C. The Presiding Officer award Amazon its attorney's fees and all other costs reasonably incurred in defense of this action; and
- D. The Presiding Officer award Amazon such other relief as it may deem just and proper favor, and against Complainant on all counts of its complaint.

Respectfully submitted,

___/s/___ John Longstreth___

Michael F. Scanlon
John Longstreth
Christiana K. Goff
K&L GATES LLP
1601 K Street, N.W.
Washington, D.C. 20006
(202) 778-9000
(202) 778-9100 (fax)

Email: michael.scanlon@klgates.com
john.longstreth@klgates.com
christi.goff@klgates.com

Counsel for Respondents

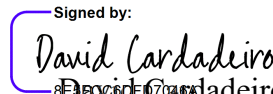
June 23, 2025

VERIFICATION

I, David Cardadeiro, declare as follows:

1. I am Vice President of Global Transportation Procurement and Customs Brokerage at Amazon.com Inc.
2. I am duly authorized to make this verification on behalf of Amazon.com Services LLC, Amazon Logistics Inc., and Beijing Century Joyo Courier Service Co., LTD, subsidiaries of Amazon.com Inc.
3. I have read the contents of Amazon's Answer and verify that the statements of fact contained therein are true and correct to the best of my knowledge, information, and belief.
4. I verify the foregoing under penalty of perjury under the laws of the United States.

Executed on June 23, 2025.

Signed by:

David Cardadeiro
Vice President, Global
Transportation Procurement &
Customs Brokerage
Amazon.com Inc.
410 Terry Ave. North

Seattle, WA 98109
cardadei@amazon.com

CERTIFICATE OF SERVICE

I certify that on this 23rd day of June, 2025, the full aforesaid Verified Answer has been filed with the Secretary for the public docket, with a copy to judges@fmc.gov and served on the following counsel of record, as provided by the Initial Order in this proceeding.

Vincent J. Foley
HOLLAND & KNIGHT LLP
787 7th Street
New York, NY 10019
(212) 513-3357
vincent.foley@hklaw.com
Counsel to Complainant

____ / s / John Longstreth ____
John Longstreth